

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Writ Petition No. 5740 of 2018

Mian Zafar Haider
vs
Deputy Commissioner etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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19.04.2018	Rana Muhammad Liaqat Ali, Advocate for petitioner. Mr. Aziz ur Rehman Khan, AAG.
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Through this constitutional petition, the petitioner has called in question order dated 04.04.2018 passed by Deputy Commissioner, Muzaffargarh whereby services of the petitioner were put under suspension with immediate effect on account of willful absence from duty.

2. The brief facts of the case are that the petitioner claims that he was appointed as Junior Clerk in the office of Tehsildar, Jatoi, District Muzaffargarh and he was subsequently directed to take the charge as record keeper of Tehsil Office and is still working there as record keeper. He has been appointed under the command of Tehsildar Jatoi, however, the Deputy Commissioner, Muzaffargarh has issued letter dated 04.04.2018 in

respect of suspension of officials of the Office of Assistant Commissioner, Jatoi on account of willful absence from duty in which name of the petitioner has also been mentioned by ignoring the fact that he is an employee of the office of Tehsildar and not of the Assistant Commissioner, therefore, seeks setting-aside of the afore referred order.

3. Conversely, learned AAG submits that the petitioner is a civil servant and has been proceeded against under Punjab Employees Efficiency, Discipline and Accountability Act, 2006 (“**PEEDA Act**”) wherein as a competent authority, the Deputy Commissioner, Muzaffargarh has initiated inquiry against the petitioner and also suspended his services. Besides, the petitioner was appointed in the office of Assistant Commissioner, Jatoi and has been working there.

4. Heard. Record perused.

5. Whether the petitioner is working in the office of the Assistant Commissioner or office of the Tehsildar is immaterial for the purpose of initiation of inquiry and his suspension from service as only the competent authority could issue the same and the Deputy Commissioner, Muzaffargarh has proceeded in his capacity as competent

authority under the PEEDA Act. Although the petitioner claims that his attendance is marked in the office of the Tehsildar but this Court cannot go into the factual determination of the matter while exercising its constitutional jurisdiction. Suspension was a temporary measure wherein an employee has to receive his full emoluments, although no work during his suspension is usually taken from the said employee. Reliance in this regard is placed on the judgment reported as **Government of N.W.F.P. v. I.A. Sherwani** (PLD 1994 S.C. 72). The matter relates to terms and conditions of service of an employee and the order of suspension is not a punishment. If any final order is passed against the petitioner as a result of proceedings under PEEDA Act, he would have remedy before the departmental authorities and Service Tribunal. This Court in its constitutional jurisdiction could not consider the intermediate stages of the proceedings relating to terms and conditions of a civil servant when the said orders are to merge in the final order likely to be passed. Besides, piecemeal decisions are not the intention of law. Moreover, bar of Article 212 of the Constitution would be applicable in the present case. Reliance in this behalf

is placed on **Khawaja Wajid Ali vs. District Coordination Officer and another** (2017 PLC (C.S.) 749) and **Mrs. Shah Jahan, Headmistress, Government Girls Elementary School, Pindi Bhattian vs. Khushnood Akhtar Lashari, Education Secretary, Punjab, Lahore** (2003 PLC(C.S.) 1416).

6. For what has been discussed above, this petition being devoid of any merit is ***dismissed***.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed *